

TAB 38



Board of Education Report

File #: Rep-112-24/25, **Version:** 1

Request for Board Authority to Pursue a Two-Year Extension to the Waiver of a Portion of Education Code 45272(a) [PUBLIC HEARING]

January 14, 2025

Personnel Commission & Office of Government Relations

Action Proposed:

Authorize the Office of Governmental Relations, in coordination with the Personnel Commission, to seek a two-year extension to the previously authorized waiver of a portion of Education Code 45272 (a), so that hiring appointments may be made by schools from other than the first three ranks of eligible applicants on the eligibility list for certain classified school-based entry level positions. The current two-year waiver will expire on June 30, 2025.

Background:

At the Board's December 7, 2021, meeting, the Board approved the Office of Government Relations (OGR) staff to seek a two-year waiver of a portion of Education Code 45272 (a) to the State Board of Education (SBE).

Education Code 45272(a) reads:

(a) All vacancies in the classified service shall be filled pursuant to this article and the rules of the commission, from applicants on eligibility lists which, wherever practicable, as determined by the commission, shall be made up from promotional examinations, or appointments may be made by means of transfer, demotion, reinstatement, and reemployment in accordance with the rules of the commission. All applicants for promotional examinations shall have the required amount of service in classes designated by the commission or meet the minimum qualifications of education, training, experience, and length of service, which shall be determined by the commission to be appropriate for the class for which they have applied...Appointments shall be made from the eligibles having the first three ranks on the list who are ready and willing to accept the position.

OGR staff submitted for and obtained a waiver for the classifications of Building and Grounds Worker, Food Service Worker, and Special Education Trainee/Assistant. The SBE granted the waiver for only one year since this was a new request and recommended that the effectiveness of the waiver be studied. The conditions of the waiver also allowed Los Angeles Unified to submit for an extension if the waiver helped to increase the hiring rate of the selected classifications.

On April 18, 2023, the Board approved a request from OGR staff to seek an extension to the waiver, and to add two new positions, Office Technician and Library Aide, to the positions that were eligible for the waiver. This waiver was granted, and is effective from July 3, 2023, to June 30, 2025. Staff recommends seeking an additional extension to this waiver for the five positions that currently benefit from that flexibility. The circumstances that necessitated a waiver have not changed, as described below. Additionally, expanded district programs will require expeditious hiring of Outdoor Education Assistants to serve our students. As such, we are recommending the waiver include this additional classification.

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The process entailed in Education Code 45272(a) requires that offers of employment be made to the top three candidates on any such eligibility list before any other candidates on the list can be made offers of employment. The process of doing so results in numerous vacancies waiting to be filled at various school sites if the top three ranks of candidates are not available or have interviewed at other schools and accepted offers.

The waiver has allowed certain school-based, entry level positions to be filled simultaneously at various schools throughout the District. This flexibility has resulted in increased rates of hiring, as demonstrated by the chart below:

New Hires & Rehires

Classification	Number of Employees Fiscal Year 2022-23 (Jul - June)	Number of Employees Fiscal Year 2023-24 (Jul - June)	Grand Total	# Positions	Existing Vacancies as of Oct - 2024
Building and Grounds Worker	189	459	648	2,041	92
Food Service Worker	891	555	1,444	2,601	172
Library Aide	84	85	169	485	20
Office Technician	253	179	432	1,311	32
Special Education Assistant/Trainee	502	979	1,481	6,887	276
Grand Total	1,919	2,257	4,176	13,324	592

As required by the SBE waiver process, the Parent Advisory Committee and affected labor groups were consulted regarding this waiver request.

Expected Outcomes:

That the granting of a two-year extension to the waiver will result in faster job offers to fill vacancies at schools for more candidates.

Board Options and Consequences:

The Board may approve the proposal, and the Office of Governmental Relations will proceed to seek the extension to the waiver from the SBE, as stated. The Board may elect not to approve the proposal and the rate of filling vacancies at schools will return to being governed by three-ranks rule effective July 1, 2025, which will delay the hiring of qualified candidates for entry-level positions at school sites.

Policy Implications:

If granted, the extended waiver will modify the way in which hiring for entry-level classified candidates at school sites are prioritized, based on the candidates' position on the eligibility list. All candidates on the eligibility list will be eligible for hire immediately.

Budget Impact:

Not Applicable

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Student Impact:

Filling school-based vacancies faster positively impacts students as incumbents in these positions provide direct services for students, and staff is relieved of the burden of performing tasks outside of their job classification during a prolonged hiring process.

Equity Impact:

Not Applicable

Issues and Analysis:

If an extended waiver is granted, the use of the waiver would be limited to entry-level positions for which an external recruitment is utilized to fill many vacancies. The rule of three ranks would still be followed for positions in non-school offices.

Attachments:

Not Applicable

Informatives:

Not Applicable

Submitted:

12/09/24

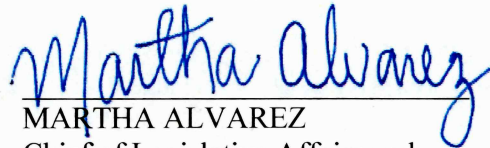
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RESPECTFULLY SUBMITTED,



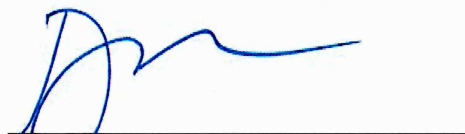
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